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File No: EXP202300859

## RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) exercised the right to erasure against GRUPO ECONOMICASA, S.L. (hereinafter, the respondent) without receiving the legally established response to her request.

The claimant states that on June 11, 2022, she requested the erasure of her data from the respondent via an email sent to the email address [privacidad@economicasa.es](mailto:privacidad@economicasa.es), without having received a response once the legally established period had elapsed. On August 3 and 26, 2022, she sent new emails, again without receiving a response. She provides copies of the requests made and the emails sent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record that the respondent has submitted any written response to this Agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on March 27, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments they deemed appropriate within ten working days, stating that:

"The complaint made by Ms. A.A.A. regarding the documentation that was provided at the time, which was destroyed, comes from a purchase and sale operation carried out by her husband, which was ultimately not processed. We are a marketing company that manages the properties of the Servicer Solvia; her husband comes to us as a client through Solvia, where they sign the data protection agreement. As intermediaries of Solvia, we request the required documentation for the anti-money laundering filters, and since they are married under the community property regime, it is mandatory to provide the documentation of the spouse, which is why Ms. A.A.A. also provided the documentation. The operation was ultimately not completed, and the complete documentation of that operation was destroyed from our files."

FOURTH: After examining the document submitted by the respondent, it was forwarded to the claimant, so that, within fifteen working days, she could formulate any arguments she deemed appropriate, without submitting any arguments within the established period.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of that transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on March 27, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

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The admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

#### IV

##### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

#### V

##### Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but has not demonstrated that it has addressed the request made by the complainant, sending the required response to their request.

Thus, it cannot be accepted that the response to be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the context of this procedure, initiated precisely for failing to adequately address the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the request does not meet the stipulated requirements, in which case the recipient of such request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which it is not appropriate to consider the right in question.

Therefore, the request made obliges the controller to provide an explicit response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision taken regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by Ms. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge GRUPO ECONOMICASA, S.L. with NIF B73665291, to send, within ten working days following the notification of this resolution, a certification to the complainant addressing the requested right or denying it with reasons indicating the causes for which it is not appropriate to address the request, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1(m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

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SECOND: NOTIFY this resolution to Ms. A.A.A. and to GRUPO ECONOMICASA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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